



UNITED ARAB
EMIRATES

REGULATORY FRAMEWORK GOVERNING MIGRANT WORKERS ¹

Updated May 2024

The below table refers to workers covered by Federal Laws. This includes all seven emirates, with the exception of employment relationships within the Dubai International Financial Centre or the Abu Dhabi Global Market.



International
Labour
Organization

PRIVATE SECTOR WORKERS

(other than domestic workers)

DOMESTIC WORKERS

KEY LEGISLATION	Federal Decree-Law No. 33/2021 Concerning the Regulation of Labour Relations (hereafter referred to as the “Labour Law”).² Cabinet Decision No. 1/2022 On the Implementing Regulation of Federal Decree-Law No. 33/2021 Concerning the Regulation of Labour Relations.	Federal Decree-Law No. 9/2022 Concerning Domestic Workers;³ Cabinet Resolution No. 106/2022 Pertaining to the Executive Regulations of Federal Decree Law No. 9 of 2022 Concerning Domestic Workers.
RECRUITMENT		
RECRUITMENT FEES	An employer cannot charge the worker or collect from him/her recruitment and employment costs, either directly or indirectly.⁴ If the worker changes to a new employer during the probation period, the employer may be able to claim (part of) the recruitment costs from the new employer.	Employers cannot charge workers any costs or charges, whether directly or indirectly unless specified in the law.⁵ Likewise, the recruitment agency is prohibited from demanding or accepting, directly or indirectly, any commission for securing the job from any domestic worker or to charge them any expenses.⁶
PASSPORT CONFISCATION	An employer cannot withhold an official document of the worker, such as a passport.⁷	Domestic workers should be allowed to retain all official documents.⁸ In case the employer withholds the domestic worker’s identification documents, he/she could be fined 500 dirhams (US\$135).⁹
WORKING CONDITIONS		
CONTRACT	The employment contract must be in accordance with the relevant Approved Standard Employment Contract based on whether the contract is full-time, part-time, temporary, flexible, remote, or job-sharing. The worker and employer can agree to introduce new clauses into the	Domestic workers may be “full-time” or “temporary”. Temporary workers are employed by the respective recruitment office, which legally is their employer, but the domestic worker’s obligations remain

¹ The information in this factsheet is made available for general information purposes only. The information included does not, and is not intended to, constitute legal advice. No obligations or rights can be derived from the information provided. This factsheet was prepared by the ILO FAIRWAY Project, supported by the Swiss Agency for Development and Cooperation, and is based on publicly available information.

² The Labour Law does not apply to the following groups of employees: (i) public sector employees; (ii) those in the armed forces, police and security; (iii) domestic workers; and (iv) employees on farms. The Labour Law also does not apply to employees in any of the financial free zones, namely the Dubai International Financial Centre and the Abu Dhabi Global Market. The Labour Law is applicable to workers in the Free Zones. Each Free Zone may supplement the Labour Law provisions. Other relevant legislation includes Federal Decree-Law No. (29) of 2021 Regarding Entry and Residence of Foreigners and Cabinet Resolution No. (65) of 2022 issuing the Executive Regulations of Federal Decree Law No. (29) of 2021 Regarding Entry and Residence of Foreigners.

³ This law came into force on 15 December 2022.

⁴ Labour Law, article 6.

⁵ Federal Decree-Law No. 9/2022, article 11(13).

⁶ Federal Decree-Law No. 9 of 2022, article 5(2).

⁷ Labour Law, article 13(2); Ministry of Interior Circular No. 267/2002. Federal Decree-Law No. 9/2022, article 11(11).

⁸ Federal Decree-Law No. 9/2022, article 11.

⁹ Schedule No. 2 of Cabinet Resolution No. 106 of 2022.

	approved contract form only if they are compliant with legal provisions. The employment contract shall be for a defined period and may be renewed for similar periods as agreed by the parties. The law does not provide for a maximum term.¹⁰	to the person/family to whom the worker provides the services.¹¹ Temporary domestic workers shall reside at the work site “specified by the beneficiary” (to whom he/she provides services) unless otherwise agreed upon between the agency and the beneficiary. The recruitment office shall be jointly responsible for implementing the law with the beneficiary.¹² The contract, modelled on the unified standard contract mandated by the Ministry of Human Resources and Emiratisation (MOHRE), must be signed and a copy given to the worker. The template contract is issued in dual Arabic and a foreign language understood by the non-Arabic speaking domestic worker. However, in the event of a dispute, the Arabic language version will be considered the official version. The duration of the contract varies. In instances where the sponsor is the employing family, the contract term is currently (in practice) between one and two years, depending on the type of visa the sponsoring family member holds. In instances where the sponsor is the recruitment office, the contract term may be for two years. The contract may be renewed for the same period.¹³ The probationary period must not be longer than 6 months.
MINIMUM WAGE	Not currently specified by law. However, a minimum wage is to be introduced by Cabinet decision. Female workers are entitled to a wage equal to that of a male worker provided they are performing the same work or other work of equal value.¹⁴	No statutory minimum wage.
WORKING HOURS	The Rule Eight hours per day, and 48 hours per week.¹⁵ Businesses whose technical nature requires continuation of work through successive shifts or tours are exempt from the standard maximum working hours and are subject to maximum working hours of 56 hours per week.¹⁶	A maximum of 12 hours per day. Domestic workers are entitled to at least 12 hours of rest per day, of which at least 8 must be consecutive hours of rest.¹⁷

10 Labour Law, article 8; and Cabinet Resolution No. 1/2022 on the Implementing Regulations of Federal Decree-Law No.33/2021 (hereafter the “Implementing Regulations”), article 10.

11 Federal Decree-Law No. 9/2022, article 14.

12 Cabinet Resolution No. 106 of 2022.

13 Federal Decree-Law No. 9/2022, article 7.

14 Federal Decree-Law No. 6/2020.

15 Labour Law, article 17.

16 Implementing Regulations, article 15.

17 Federal Decree-Law No. 9/2022, article 9(2).

	Exceptions Working hours will be reduced by two hours during the month of Ramadan.¹⁸ Employees are entitled to a daily break for rest, meals and prayer after five consecutive hours of work per day.¹⁹ In some cases, the period spent by the worker commuting between their place of residence and the workplace shall be counted within the working hours.²⁰	
REST PERIODS	One day per week as specified in the employment contract or internal work regulations.²¹ Workers who work on their rest day are entitled to request a rest day in lieu that can be taken at a later date or be paid at a rate of 150 per cent of their basic wage.²²	One day per week. Workers who work on their rest day shall be granted an alternative one day of rest or be compensated with cash in lieu for this rest day.²³ The domestic worker may not be required to work on more than two consecutive days of rest in any two weeks, unless otherwise agreed on.²⁴
OVERTIME	The Rule Employees who work overtime during the hours of 4 a.m. and 10 p.m. are entitled to the wage paid during ordinary working hours plus an additional amount of not less than 25 per cent of their basic wage for the overtime period. Overtime must not exceed 2 hours per day. Total working hours should not exceed 144 hours in 3 weeks.²⁵ Exceptions Overtime is calculated as the salary payable during normal working hours plus an increase of not less than 50 per cent of the worker's basic remuneration for the overtime period worked between 10 p.m. and 4 a.m.²⁶ Certain categories of employees are exempt from the maximum working hours provisions. These include: • Chairperson and members of the board of directors; • Persons occupying supervisory positions, if such positions would enable them to enjoy the powers of the employer; • Crews of naval vessels and other workers at sea; and • Preparatory or complementary work which must necessarily be carried out outside the time limits generally established for work in the facility.²⁷	Not specified by law.

18 Implementing Regulations, article 15.

19 Labour Law, article 18.

20 Cabinet Resolution No. 1 of 2022, article 15.

21 Labour Law, article 21.

22 Labour Law, article 19.

23 Federal Decree-Law No. 9/2022, article 9(1).

24 Cabinet Resolution No. 106 of 2022, article 8.

25 Labour Law, article 19.

26 Labour Law, article 19.

27 Implementing Regulations, article 15.

PAYMENT OF WAGES	Employers must pay workers via the Wage Protection System (WPS) or another system approved by the MOHRE, at least once a month (or on the dates specified in the work contract if the frequency of payment is greater than monthly). Employees shall receive their wages on the first day of the month following the registered payday specified in the employment contract. The payment of wages can be made in a currency other than the Emirati dirham, if agreed between the two parties in the employment contract.²⁸ The only employers exempt from the WPS are fishing boats and public taxis (owned by nationals), banks and houses of worship.²⁹	Employers have to pay domestic workers on a monthly basis no later than ten days after the due date. A written receipt must be provided.³⁰ The employer can deduct up to a quarter of the worker's salary if the worker caused any loss, damage or destruction to any tools, machines, equipment or products owned by the employer, kept in the custody of the worker or under the worker's disposal.³¹ Employers are required to register and pay the wages of domestic workers through the WPS if the worker is employed as a: • private agricultural engineer; • private messenger; • home care provider; • private tutor; • private trainer.³² For the other 14 domestic work professions (including housemaid, security guard, physical labour worker, housekeeper, cook, nanny/babysitter) the employer is not obliged, but may voluntarily pay the worker through the WPS from 1 January 2023.³³
ANNUAL LEAVE	Paid 30 days per year upon completion of one year of employment. If the period of service is less than a year but more than six months, the worker is entitled to two days' leave for each month until completing 12 months of service (24 days in total).³⁴ The Labour Law does not provide for annual leave during the first six months of employment, but leave may be taken during the probationary period with the employer's consent.³⁵ Different calculations apply to part-time workers.	Paid 30 days per year of service upon completion of one year of employment. If the period of service is less than a year but more than six months, the worker is entitled to two days leave for each month until completing 12 months of service.³⁶ The employer may determine the timing of the annual leave. If the nature of the work requires the worker to work during part or all of the annual leave, that leave is either carried over to the following year or must be compensated in cash.³⁷ It is prohibited for a domestic worker to work during their annual leave more than once during two consecutive years. The employer must pay for the cost of a return ticket once every two years if the worker wishes to spend their annual leave in their home country.³⁸

28 Labour Law, article 22(3).

29 Ministerial Resolution No. 43/2022.

30 Federal Decree-Law No. 9/2022, article 15.

31 Federal Decree-Law No. 9/2022, article 16.

32 Ministerial Resolution No. 675 of 2022, article 2.

33 Ministerial Resolution No. 675 of 2022, article 2.

34 Labour Law, article 29.

35 In case of dismissal or resignation, workers receive payment for any accumulated unused annual leave days, after the notice period.

36 Federal Decree-Law No. 9/2022, article 10(1).

37 Federal Decree-Law No. 9/2022, article 10(2).

38 Federal Decree-Law No. 9/2022, article 10(4).

OSH AND LABOUR ACCOMMODATION

Working outdoors is banned for construction and industrial workers between 12.30 p.m. and 3 p.m. during summer (15 June through 15 September).³⁹

All industrial establishments, and construction companies with more than 100 workers, must appoint a qualified OSH officer.⁴⁰ Establishments in the construction sector with more than 50 workers where the monthly wage is 1,500 dirhams (US\$400) or less must provide accommodation, which must comply with certain requirements.⁴¹ Employers with more than 50 employees must provide free accommodation to low-income employees earning less than 2,000 dirhams (US\$545) per month.⁴²

Domestic workers must be provided with protective equipment and the employer must take measures to protect the worker from occupational disease and injury.⁴³

Employers have to provide domestic workers with appropriate accommodation, medical care, food and work attire, but only if the worker is employed on a full-time basis, unless agreed otherwise.⁴⁴

The recruitment agency should provide decently equipped temporary accommodation for domestic workers if they are registered to employ workers (to work in households on a temporary basis) or for the period between arriving and being placed with a family.⁴⁵

LEGAL ACCESS TO SOCIAL PROTECTION⁴⁶

MEDICAL INSURANCE COVERAGE

In Abu Dhabi

The employer is mandated to provide and finance a compulsory private health insurance scheme for migrant employees, their spouse and up to three dependent children. The benefits to be included in the compulsory health insurance scheme include medical examinations and treatment, laboratory tests, x-rays, in-patient stays, regular dental care and accommodation charges critical cases.

An employer failing to subscribe his/her employee to the compulsory health insurance scheme will be fined no less than 300 Emirati dirhams (approximately US\$82) for each month that the employee remains unsubscribed.

Coverage of dependents varies.

The employer is liable for the domestic worker's medical care in accordance with the health system in effect in the Emirate, or, alternatively, provide the domestic worker with appropriate health insurance in accordance with the laws and regulations governing the Emirate's health system.⁴⁷

39 Ministerial Decree No. 401/2015 Concerning the Determination of Midday Working Hours.

40 Ministerial Resolution No. 44/2022.

41 Cabinet Resolution No. 13 of 2009.

42 Ministerial Resolution No. 591/2016.

43 Cabinet Resolution No. 106 of 2022.

44 Federal Decree-Law No. 9/2022, article 11(3).

45 Federal Decree-Law No. 9/2022, article 5(5).

46 For further information on migrant workers access to social protection in the Gulf Council Cooperation Countries, please see: ILO (2023). [Review of National Social Protection Legislation and Legal Frameworks for Migrant Workers in the Gulf Countries](#).

47 Federal Decree-Law No. 9/2022, article 11(5).

	In Dubai (mainland) The employer is mandated to provide and finance basic private health insurance to their nationals and non-nationals employees for the duration of employment. For non-nationals, the policy applies from the date of the employee's residence issuance or renewal. Employers have discretion to extend the policy coverage to the dependents of employees. However, if such policy coverage is not extended by the employer, the obligation to obtain insurance for their dependents lies with the employee. Employers who fail to provide the requisite health insurance are subject to penalties which may comprise warnings, licence cancellation or fines of between 500 dirhams (US\$136) and 150,000 dirhams (US\$41,000). Other emirates (Ajman, Fujairah, Ras Al Khaimah, Sharjah, Umm Al Quwain) Currently, there is no legal mandate for an employer to provide medical insurance (whether public or private) to their employees working in these emirates,⁴⁸ although mandatory health insurance will be extended to private sector employees in all the emirates from 1 January 2025.	
SICKNESS LEAVE AND PAY	Workers are entitled to 90 days of sick leave per year: the first 15 days at full pay; the next 30 days at half pay; and the remaining 45 days at no pay. ⁴⁹	Domestic workers are entitled to 30 days of sick leave per year, the first 15 days on full pay and the remaining 15 days on half pay, subject to providing a medical report. ⁵⁰ If the domestic worker's behaviour contributed to the illness, no payment will be made during sick leave. ⁵¹
UNEMPLOYMENT BENEFITS	Benefit paid monthly at 60 per cent of the employee's previous salary (up to a maximum of 20,000 dirhams (US\$5,450) per month) and for a period of 3 months. Employee must have been insured for at least 12 continuous months and not have resigned or been dismissed for disciplinary reasons. Unemployment insurance contributions are mandatory and must be paid entirely by the employee: 5 dirhams (US\$1.36) per month for workers earning a monthly salary of 16,000 dirhams (US\$4,360) or less, and 10 dirhams (US\$2.72) for those earning more than 16,000 dirhams per month.⁵²	Not specified by law.

48 ILO (2023). Review of National Social Protection Legislation and Legal Frameworks for Migrant Workers in the Gulf Countries. [Review of National Social Protection Legislation and Legal Frameworks for Migrant Workers in the Gulf Countries](#).

49 Labour Law, article 31. If the worker's behaviour contributed to the illness, no payment will be made during sick leave. This has to be supported by a report from the responsible medical entity proving that the sickness resulted from the worker's behaviour.

50 Federal Decree-Law No. 9/2022, article 10(6).

51 Federal Decree-Law No. 9/2022, article 10(7).

52 Federal Decree No. 13 of 2022; Cabinet Decision No. 97 of 2022; and Resolution No. 604 of 2022.

EMPLOYMENT INJURY BENEFITS

In cases of occupational injuries or diseases, the employer shall undertake to pay the cost of the treatment of the worker in a governmental or private medical centre until the worker recovers or disability is proven. Should the injury prevent the worker from performing their work, the employer shall pay the employee an allowance equal to the full wage for the entire period of treatment, or for 6 months, whichever is shorter. Should the duration be greater than 6 months, the allowance shall be reduced to half pay for the following 6 months, or until the worker recovers, is declared disabled or dies.

Should the worker's injury result in death, the worker's heirs will be entitled to compensation equivalent to 24 months of the worker's basic salary (subject to a minimum of 18,000 dirhams (US\$4,900) and a maximum of 200,000 dirhams (US \$54,460)).⁵³

The employer is liable for the domestic worker's medical care in accordance with the health system in effect in the respective Emirate, or, alternatively, provide the domestic worker with appropriate health insurance in accordance with the laws and regulations governing the health system.⁵⁴

The employer is liable for compensation for work injuries and occupational diseases as set out in the Labour Law.

OLD-AGE, NATURAL DISABILITY, DEATH AND SURVIVORS' BENEFIT INSURANCE COVERAGE

No old-age, natural disability, death or survivors' benefits are provided for by law. However, there is a statutory benefit of an end-of-service gratuity that is calculated as follows:

A full-time migrant worker who has completed a year or more in the continuous service is entitled to:

- 21 days of wages for each year of the first five years of service;
- 30 days of wages for each additional year.⁵⁵

Voluntary Alternative End-of-Service Benefits Scheme for Private Sector Workers – the Savings Scheme⁵⁶

In the private sector, employers can decide to contribute an equivalent amount to a private savings and investment fund overseen by the Securities and Commodities Authority. At the end of service, employees, entitled to end-of-service indemnity benefits as per the Labour Law, will receive the accrued savings and investment returns from their participation in the investment fund.

Monthly contribution rates by employers have been set at 5.83 per cent of the monthly basic salary of employees who serve less than five years, and 8.3 per cent of the basic salary of those who serve more than five years.

No old-age, natural disability, death or survivors' benefits are provided for by law.

There is a statutory benefit of an end-of-service gratuity, but the rules and regulations for calculation and payment of this gratuity for domestic workers have not yet been determined.⁵⁷

⁵³ Labour Law, article 37.

⁵⁴ Federal Decree-Law No. 9/2022, article 11(5).

⁵⁵ Labour Law, article 51. A migrant worker shall be entitled to a benefit for a part of the year in proportion to the period spent at work, provided that they have completed one year of continuous service.

⁵⁶ The scheme also allows voluntary participation for self-employed individuals, those with freelance work permits, and non-nationals working in the public sector. UAE, Cabinet Resolution No. (96) of 2023.

⁵⁷ The UAE Cabinet shall adopt these rules according to Federal Decree-Law No.9/2022, article 22, but this has not been done to date (May 2023).

	Migrant workers registered by their employers in the system have the option to make additional contributions on a voluntary basis up to a maximum of 25 per cent of their total annual salary.	
MATERNITY LEAVE AND PROTECTION	Maternity leave – An employee who has completed six months of pregnancy is entitled to 45 calendar days of maternity leave at full pay, followed by 15 days of at half pay. Following maternity leave, the employee is eligible for up to 45 additional days of unpaid leave for medical reasons, and an additional 60 days of leave (30 with full pay and 30 unpaid) if the child is affected by a disability or medical condition that requires full-time care.⁵⁸ Maternity protection – A female employee may not be terminated because of her pregnancy.⁵⁹	Not specified by law.
FREEDOM OF ASSOCIATION		
RIGHT TO JOIN TRADE UNIONS	The Labour Law does not recognize the right of workers to organize or to form trade unions, although there is no prohibition on joint worker-management committees at the company level, which can also include migrant worker representatives.	
GRIEVANCES AND DISPUTE RESOLUTION		
LODGING COMPLAINTS/ RESOLVING DISPUTES	Conciliation Individual complaints must be launched within 30 days of either of the worker or employer failing to fulfill the obligations stated in the employment contract or the law.⁶⁰ The individual labour complaint can be registered via the MOHRE website or app, or by contacting the hotline for non-nationals (80084). A text message is sent to both parties with details of the complaint and the process. A legal officer aims to facilitate an amicable dispute resolution.⁶¹ If a settlement is not reached within two weeks of submission of the complaint, the MOHRE can refer the dispute to the competent court or cancel the work permit as decided by the legal officer.⁶² However, the MOHRE will render a final judgment if the value of the claim is not more than 50,000 dirhams (US\$13,600) or	In the event a dispute arises⁶³ and the parties are unable to settle the matter amicably, the dispute can be referred to the MOHRE, which will review and take the appropriate action. Where the matter remains unresolved within 2 weeks of receiving the complaint, the case may be referred to the Labour Court (see “Judicial remedy” in the cell to the left).⁶⁴ No legal action to recover rights may be brought more than three months after the end of the employment relationship.⁶⁵ The MOHRE will render a final judgment on any dispute submitted to it if the value of the claim is not more than 50,000 dirhams (US\$13,600) or if

58 Labour Law, article 30.

59 Labour Law, article 30.

60 Ministerial Resolution No. 47/2022 on the Settlements of Labour Disputes and Complaints Procedures.

61 Federal Decree Law No. 20/2023 Amending Certain Provisions of Federal Decree Law No. 33/2021. This decree law took effect on 1 January 2024.

62 Labour Law, article 54 as amended; Implementing Regulations, article 31; Administrative Resolution No. 25/2022.

63 Including a dispute between the worker and the employer or the worker and the recruitment agency.

64 Federal Decree Law No. 21/2023 Amending Certain Provisions of Federal Decree Law No. 9/2022. This decree law took effect on 1 January 2024.

65 Federal Decree-Law No. 9/2022, article 26.

if neither party complies with an amicable settlement.⁶⁶ The MOHRE may be able to use the bank guarantee or insurance policy of the company to reimburse the worker.

A collective labour claim can be filed with the MOHRE in instances where a dispute arises between the employer and a group of more than 50 employees. The MOHRE official will aim to facilitate an amicable dispute resolution. If no settlement is reached within 30 days, the MOHRE will refer the dispute to the competent Committee of Settlement of Collective Labour Disputes.⁶⁷ The Committee must make a judgment on the dispute within 30 days from the date of the first session (which will be held two days after receiving the complaint).⁶⁸

As part of the dispute resolution process, the Ministry may order the employer to provide the worker's wages for a maximum of two months, if the dispute results in the worker's wages being withheld.

If the Minister finds that the existing individual dispute has the potential to lead to a collective labour dispute that is detrimental to the public interest, administrative procedures or measures may be imposed on the company.

Specifically for salary issues, if the worker has not been paid correctly, he/she can make a confidential complaint via the My Salary app. This notification is confidential and information is not disclosed to the employer.

Judicial Remedy

Individual disputes that cannot be resolved by the MOHRE will be referred to the Labour Court. However, once the MOHRE makes this referral, the worker has a maximum of 14 days to register the labour complaint with the competent court. The worker can only work for another employer after obtaining a temporary permit from the MOHRE (workers with an absconding claim against them are ineligible for this permit).⁷²

neither party complies with an amicable settlement decision relating to the subject matter, regardless of the value of the claim.⁶⁹

Labour inspectors are not allowed to enter the employer's family residence without the consent of its owner, except with the permission of the Public Prosecutor in the following two circumstances: (1) a complaint is submitted by the employer or the domestic worker; or (2) the existence of reasonable evidence of violation of the provisions of the law or regulations.⁷⁰ Labour inspectors can enter recruitment agencies, including accommodations provided by the recruitment agency for domestic workers.⁷¹

66 Federal Decree Law No. 20/2023. If the decision is not satisfactory to either party, either party may file a lawsuit before the relevant court. Upon filing, the court will schedule a hearing to consider the case within three (3) working days, and the case will be adjudicated within fifteen (15) working days. The decision of the Court of Appeals shall constitute a final verdict.

67 Ministerial Resolution No. 47/2022 on the Settlements of Labour Disputes and Complaints Procedures.

68 Cabinet Resolution No. 46/2022 Concerning Formation of the Collective Labour Disputes Committee.

69 Federal Decree Law No. 21/2023. In such a case, if the decision is not satisfactory to either party, either party may file a lawsuit before the relevant Court of Appeals for a review of the decision within Fifteen (15) working days following notification of the decision. Upon filing, the court will schedule a hearing to consider the case within three (3) working days, and the case will be adjudicated within fifteen (15) working days.

70 Federal Decree-Law No. 9/2022, article 22.

71 Federal Decree-Law No. 9/2022, article 24.

72 Ministerial Resolution No. 47/2022 on the Settlements of Labour Disputes and Complaints Procedures.

The Labour Court must, within three days from the date of receipt of the file, fix a hearing date and notify the parties. Labour claims that do not exceed 500,000 dirhams may be referred to the Summary Chambers within the Partial Circuit Division, where the case may be expedited.

The worker has only one year from the breach to file a lawsuit.⁷³

SPONSORSHIP

SPONSORSHIP AND CHANGING EMPLOYERS

With permission of employer

Anytime.

Without permission of employer

Anytime, provided that the worker can show “legitimate reason” and gives the employer notice in writing. The notice period is agreed in the contract (between 30 and 90 days).⁷⁴ The term “legitimate reason” has not been defined in the legislation.

The employer cannot force the worker to leave the UAE at the end of the employment relationship.⁷⁵

With permission of employer

Anytime.⁷⁶

Without permission of employer

A domestic worker can terminate the contract if a judicial decision demonstrates that the employer has breached their obligations towards the domestic worker.⁷⁷ The worker must inform the MOHRE within two weeks of the occurrence.⁷⁸

In case the employer (or representative) commits assault, including sexual assault or humiliation, the worker can leave immediately without notice, but must report to the competent authorities immediately and inform the MOHRE within three days of leaving.⁷⁹

In case the worker leaves under the above circumstances, she/he should return to the recruitment office that recruits them for housing. The worker will be able to retain their entitlements and either leave the country or transfer to another employer. However, the legislation does make reference to a “judicial decision which demonstrates that the employer has breached his obligations towards the domestic worker during the term of their employment contract”.⁸⁰

⁷³ Federal Decree Law No. 20/2023, article 9.

⁷⁴ Labour Law, article 43.

⁷⁵ Labour Law, article 13.

⁷⁶ Pursuant to Article 2 of Ministerial Resolution No. 674 of 2022, domestic workers may transfer from one employer to another, with the Ministry’s approval, and after submitting their application through the approved service channels, “if the employer consents to the transfer in writing during the term of the employment contract”.

⁷⁷ Ministerial Resolution No. 674 of 2022, article 2.

⁷⁸ Federal Decree-Law No. 9/2022, article 20; Cabinet Resolution No. 106/2022.

⁷⁹ Cabinet Resolution No. 106/2022.

⁸⁰ Ministerial Resolution No. 674/2022, article 2.

		The employer may terminate the contract for a number of reasons, including: • if the worker is absent more than 10 consecutive days or 15 intermittent days without valid reason; and • the worker has breached the contract (direct employment: worker pays for repatriation; recruitment by agency: agency pays for tickets).
“UNEXPLAINED ABSENCE” / ABSCONDING	An employer can report a worker as having “absented him or herself from work” for more than seven consecutive days without the employer knowing where the worker is or being able to communicate with them. In such a case, the employer can lodge a complaint on the MOHRE website/app and the work permit is automatically cancelled as soon as the application is approved (within no more than two days of the application being filed).⁸¹ The MOHRE can cancel the application in a limited number of cases, including if there is “a legitimate reason for [the worker] not reporting to work or any other reason in which the complaint is proven to be invalid”.⁸²	A domestic worker must inform the MOHRE within two days of leaving work without the employer’s knowledge.⁸³ Moreover, the employer has an obligation to inform the MOHRE within five days of a domestic worker “abandoning” work.
LEAVING THE COUNTRY	No exit permit is required.	

⁸¹ Administrative Resolution No. 25/2022.

⁸² Ministerial Resolution No. 47/2022 on the Settlements of Labour Disputes and Complaints Procedures.

⁸³ Federal Decree-Law No. 9/2022, article 18.